

STANDARD CITY AGREEMENT FOR SERVICES

City Contract # _____

PROFESSIONAL SERVICES AGREEMENT

for

Furnishing and Installing a Parking Access, Permit and Revenue Control System

THIS AGREEMENT is made and entered into this ____ day of _____, 2018, by and between the City of Cheyenne (the "City"), located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Passport Labs, Inc. (the "Contractor"), located at 128 S. Tryon Street, Suite 128, Charlotte, NC 28202.

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Contractor agrees to provide services and license all software, including all web and mobile applications and related documentation, necessary for the Contractor to operate (1) a custom-branded mobile payment for parking program and (2) a digital permits for parking system.

2. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Contractor will invoice the City and the City agrees to pay the Contractor pursuant to the payment terms set forth in Exhibit A, which is attached hereto and incorporated herein by reference, the total amount of all such invoices not to exceed Five Hundred Seventy-Four Thousand and Two Dollars and Fifty-Eight Cents (\$574,002.58).

No additional funding under this Agreement shall be expended absent the Parties executing a modification pursuant to the terms of this Agreement. Any work performed in excess of the amount provided for herein and absent an executed modification under these terms shall not entitle the Contractor to any additional compensation.

Contractor may not utilize funds specified for use in support of one task, as identified in RFP-16-18, if applicable, in support of another identified task, as identified in the RFP, if applicable. If Contractor desires to transfer budgeted funds from one identified task to another, Contractor must obtain the written and signed consent of the City's project manager for this project, the President of the City's governing body or his or her designee, and the Mayor.

Any work performed by the Contractor that utilizes funds identified for a different task without prior written execution of an instrument authorizing the transfer and demonstrating agreement by both Parties shall not be entitled to compensation. Electronic communications including, but not limited to email or text messages, do not constitute written instruments sufficient to authorize such modifications. Executed instruments authorizing such transfers may be transmitted electronically.

3. TIME OF PERFORMANCE

The Project shall be successfully completed in accordance with the Project schedule as contained within the RFP or as agreed upon between the parties to this Agreement.

4. CONTRACTOR RESPONSIBILITY

In providing services under this Agreement, the Contractor shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Contractor and by agreement between the parties, the Contractor will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other contractors under contract with City of Cheyenne, and their employees and sub-contractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Contractor while performing the duties and responsibilities of the Agreement. It is the responsibility of the Contractor to familiarize themselves with the requirements of this policy and to inform all their employees and sub-contractors of the requirements and ensure their compliance. If the Contractor, their employees or sub-contractors are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Contractor agrees to indemnify, hold harmless and defend the City from and against any and all third-party liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Contractor's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Contractor, or its employees or sub-contractors in the performance of this Agreement. The Contractor acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph. The Contractor shall not be responsible to indemnify the City to the extent of any liabilities, claims, penalties, forfeitures, suits, costs, damages, losses, and expenses arising out of or resulting from the actions of the City or any third-party, and except as described above in this Section 7.

8. INSURANCE REQUIREMENTS

The Contractor must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement.

Contractor shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Contractor shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Contractor's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Contractor shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Contractor begins the provision of services under this Agreement; and
- b. In the event the Contractor's services extend into a future policy period, the Contractor shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Contractor will provide services under this Agreement; and
- c. Contractor shall maintain said "claims made" coverage for a period of five (5) years following the last date that Contractor has provided services under this Agreement; and
- d. In the event the Contractor or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Contractor shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Contractor has provided services under this Agreement.

Additional Insurance Information

The Contractor shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies, and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies. Contractor shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Contractor to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

The Contractor shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Contractor's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26 All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.

10. INDEPENDENT CONTRACTOR

The Contractor shall function as an independent contractor for the purposes of this Agreement. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Contractor or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

11. TAXES

The Contractor agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.

12. DEFAULT

In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

13. REMEDIES

In the event a party has been declared in default, the non-defaulting party shall provide written notice to the defaulting party stating the alleged default and the defaulting party shall be allowed a period of fifteen (15) days from the defaulting party's receipt of the written notice within which to cure the default. In the event the default remains uncorrected after the cure period, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

14. TERM AND TERMINATION

This Agreement shall be in effect until the Project has been successfully completed, including the expiration of any such warranty period, as is applicable, and such terms shall survive the completion of the project as are relevant to enforcement of the terms herein.

The City may, without cause, and upon thirty days' written notice to the Contractor, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Contractor shall:

- a. Discontinue all services affected; and
- b. Except as otherwise set forth herein, deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Contractor in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Contractor for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

15. ADDITIONAL REMEDIES

In the event the Contractor fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Contractor. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

16. WAIVER

Failure by the City to specifically enforce any term shall not constitute waiver of such term. The waiver of any breach of any of the terms or conditions of this Agreement shall be limited to the act or acts constituting such breach, and shall never be construed as being a continuing or permanent waiver of any such terms or conditions, all of which shall be and remain in full force and effect as to future acts or happenings, notwithstanding any such individual waiver of any breach thereof.

The City's approval of drawings, plans, specifications, reports, and incidental work or materials furnished hereunder shall not in any way relieve the Contractor from responsibility for the technical accuracy of the work. The City's approval or acceptance of, or payment for, any services shall not be construed to operate as a waiver of any of the City's rights under this Agreement or any of its legal rights under statute and common law arising out of the performance of this Agreement.

17. SUCCESSORS AND ASSIGNS

All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the Parties hereto and their respective permitted successors and assigns. Neither Party shall assign this Agreement without prior written consent of both Parties; provided, however, that the Contractor may, without such written consent, but with ten (10) days' written notice to Provider, assign this Agreement and its rights and delegate its obligations hereunder in connection with the transfer or sale of all or substantially all of its assets or business related to this Agreement, or in the event of its merger, consolidation, change in control or similar transaction. Any unpermitted assignment shall not operate to relieve either Party of its responsibilities hereunder. However, nothing in this Agreement shall prohibit the Contractor from subcontracting to a qualified subcontractor.

18. THIRD-PARTY RIGHTS

The Parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the Parties to this Agreement, and shall inure solely to the benefit of the Parties to this Agreement. The Parties to this Agreement intend and expressly agree that only the Parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive any of the Parties' immunities.

19. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

20. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall

not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

21. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Contractor or its sub-contractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

22. NON-DISCRIMINATION

The Contractor shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

23. PERSONNEL; LICENSES/PERMITS

The Contractor agrees it will employ, at its own expense, all personnel necessary to perform the services required by this Agreement and in no event shall such personnel be the employees of the City. All services required shall be performed by the Contractor and personnel engaged therein shall be fully qualified under applicable federal, state and local law to undertake the work performed. Contractor assumes full and sole responsibility for the payment of all compensation and expenses of such personnel; for all applicable state and federal income tax, unemployment insurance, Social Security, disability insurance and other applicable withholdings, and the acquisition of any licenses and permits required to provide the services for the Project.

24. NOTICES

Any notice or other communication given by either party to the other relating to this Agreement shall be in writing, and shall be delivered in person, sent by certified mail, return receipt requested, sent by reputable overnight courier, sent by facsimile transmission, or sent by electronic communication means (with proof of receipt if by facsimile or electronic communication). Notices shall be sent:

If to City:

City of Cheyenne
Cheyenne Police Department
Attn: Capt Nathan Buseck
Cheyenne, WY 82001
Email: nbuseck@cheyennepd.org
Facsimile: 307.637.6543

With copy to: Logan Sharpe
Assistant City Attorney
Email: lsharpe@cheyennecity.org

If to Contractor:

Passport Labs, Inc.
Attn: Khristian Gutierrez
128 S. Tryon St., Suite 2200
Charlotte, NC 28202
Email: khristian.gutierrez@passportinc.com
Facsimile: 888.804.1783

With copy to: Jason Idilbi, General Counsel
Email: jason.idilbi@passportinc.com

25. MODIFICATIONS

Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the Parties to this Agreement shall be incorporated by written instrument and executed by all Parties. No modification will be valid and binding but shall be void without a written instrument, executed by all Parties.

Any work performed by the Contractor that exceeds the scope of the Agreement without prior written execution of an instrument authorizing the work and demonstrating agreement by both Parties shall not be entitled to any additional compensation. Electronic communications including, but not limited to email or text messages, do not constitute written instruments sufficient to authorize such modifications. Executed instruments authorizing such modifications may be transmitted electronically.

26. SEVERABILITY

If any provision of this Agreement is determined to be illegal or unenforceable for any reason, the same shall be severed from the Agreement and the remainder of the Agreement shall be given full force and effect.

27. ENTIRETY OF AGREEMENT

This Agreement consisting of 11 pages (including the attached Exhibit A, consisting of 2 pages and the attached Exhibit A-1, consisting of 9 pages) the Contractor's response to RFP-16-18, incorporated herein by reference, and RFP-16-18, incorporated herein by reference, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. This Agreement merges all prior discussions, negotiations, letters of understanding or other commitments between the Parties, whether oral or in writing. In the event of conflict between or among the terms of the Agreement documents, the order of precedence shall be the order of documents listed above, with the first-listed document having the highest precedence and the last-listed document having the lowest precedence.

28. DATA RIGHTS

This Section shall govern the rights of the Contractor and the City, as the case may be, with respect to the data that is subject to this Agreement. Contractor will, by provisions in its Privacy Policy or otherwise, procure from such end users all such lawful consents and rights necessary to grant to the City the rights in such data as stated in this Section. Contractor's Privacy Policy, as it may be amended from time to time in the Contractor's sole discretion, can be viewed at <https://passportinc.com/privacy-policy/>.

- a. Operational data is data specific to the City's operation that is provided by the City to the Contractor to be used in the providing of services. Operational data is specific to the City's operation, which is not available to the Contractor publicly or by other means. Operational data may include, but is not limited to, zone information, rate information, operational schedules, business metrics, relevant details of partner agreements. In each case, Operational data may refer to past, present, or future states of such items.

Operational data is the sole and exclusive property of the City. The City grants the Contractor a perpetual, irrevocable, royalty-free, non-exclusive, non-assignable, and non-transferrable license to Operational data, provided that, the Contractor may assign or transfer such license to a successor in connection with the transfer or sale of all or substantially all of its assets or business related to this agreement, or in the event of its

merger, consolidation, change in control or similar transaction.

- b. Payment Card Industry-Data Security Standard Information (“PCI-DSS Information”) consists of the following items, each as defined by the then-current Payment Card Industry Data Security Standards (“PCI-DSS”): Account Data; Cardholder Data; Primary Account Number; and Sensitive Authentication Data.

The Contractor acquires a license or sublicense to the PCI-DSS Information from end users who share such data with the Contractor in connection with their use of the Software. The Contractor must secure such data in accordance with PCI-DSS. As such, the Contractor may not grant the City derivative rights to such PCI-DSS Information and the Contractor shall not be required to disclose such PCI-DSS Information to the City.

- c. Personal identifiable information (“PII”) is any representation of information that permits the identity of an individual to whom the information applies to be reasonably determined or inferred by either direct or indirect means. Name, address, social security number or other identifying number or code, telephone number, or email address directly identify individuals. Certain data elements—including gender, race, birth date, geographic indicator (such as zip code or postal code), and other descriptors—can be used in conjunction or with other data elements to indirectly identify individuals. Information permitting the physical or online contacting of a specific individual (e.g., IP address) is also personally identifiable information.

End users of the Contractor’s Software own PII and license it to the Contractor pursuant to the Contractor’s Privacy Policy, as it may be amended from time to time in the Contractor’s sole discretion. The Contractor may sublicense PII to the City under certain conditions (including but not limited to the City’s compliance with information security controls and applicable regulations) that shall be memorialized separately if and when applicable.

- d. Activity data is any data generated in the providing of services under this agreement by the Contractor to the City and by end users’ interactions with the services or with the Contractor directly that is not otherwise PCI-DSS information or PII as defined above. Activity data may include, but is not limited to, user interaction data, geolocation data, opt-in/opt-out status (including compliance logs), purchase and session data, application diagnostic data, service performance data, and support data. Data that is derived from Activity data is also Activity data.

Activity data is the sole and exclusive property of the Contractor. The Contractor grants the City an irrevocable, royalty-free, non-exclusive, non-assignable, and non-transferrable license to Activity data for the duration of the term of this Agreement and only to the extent and in the format that the Contractor chooses in its sole discretion to expose such data through its administrative portal or as otherwise agreed upon with the City and only for the City’s internal use in connection with the services provided under this agreement.

29. PRIVACY POLICY; TERMS OF USE

End users’ use of the Services shall at all times be governed by (a) the Contractor’s Privacy Policy, as it may be amended from time to time in the Contractor’s sole discretion, which can be viewed at <https://passportinc.com/privacy-policy/>, and (b) the Contractor’s Terms and Conditions, as they may be amended from time to time in the Contractor’s sole discretion, which can be viewed at

<https://passportinc.com/terms-and-conditions/>.

30. INTELLECTUAL PROPERTY

The Contractor grants the City a revocable, non-exclusive, non-assignable, non-transferrable, and non-subleaseable right and license to use and access the Software only for its internal business purposes for the duration of the Term. All intellectual property rights including, without limitation, trade names, source code, trademarks, copyrights, patents, and trade secrets, not explicitly granted to the City in this agreement are reserved to the Contractor.

The City will not, directly, indirectly, alone, or with another party, (i) copy, disassemble, reverse engineer, or decompile the software or any subpart thereof; (ii) modify, create derivative works based upon, or translate the software or source code; (iii) transfer or otherwise grant any rights in the software or source code in any form to any other party; (iv) attempt to do any of the foregoing or cause or permit any third party to do or attempt to do any of the foregoing, except as expressly permitted hereunder.

31. PUBLICITY; USE OF NAMES AND MARKS

Subject to the provisions of Section 32 (Confidentiality) below, the parties will have the right to publicly disclose that the Contractor is the City's provider of the Software as set forth herein by means of, by way of illustration and not limitation, news releases, public announcements, or other forms of publicity. The Contractor may use the name or marks of the City, or reference the fact that the City is a client of the Contractor, for business development purposes, as part of a portfolio or work, or in an illustrative list of clients.

32. CONFIDENTIALITY

The City and the Contractor agree to treat this Agreement and all information furnished, or to be furnished, by or on behalf of the other party and information analyses, summaries and other work product derived from such information (collectively, the "Confidential Information") in accordance with the provisions of this section and to take, or abstain from taking, all actions set forth herein. Each party, as a receiving party, will do the following things with regard to the Confidential Information of the other party:

- a. Prevent the disclosure of the Confidential Information by the receiving party and each of the receiving party's employees, agents, and/or professionals to any third party other than as permitted under this Agreement;
- b. Use, and permit the use of, the Confidential Information only for the purposes of providing, or enjoying the benefit of, the goods, services, and/or software provided for in this Agreement (the "Purpose");
- c. Disclose the Confidential Information only to such of the receiving party's employees, agents, and professionals as have a bona fide need to possess or know the Confidential Information in the course of accomplishing, or advising the disclosing party with regard to, the Purpose;
- d. Cause each employee, agent, or professional to whom the receiving party discloses the Confidential Information to be bound by an obligation of confidentiality that is at least as rigorous as the obligations contained in this Agreement; and
- e. Return or destroy all written or other tangible copies of Confidential Information in the receiving party's possession or direct or indirect control, including all extracts and copies thereof, within a reasonable time after, and in accordance with, the disclosing party's request.

Nothing in this Agreement will prevent the receiving party from disclosing or using Confidential Information to the extent that:

- a. It is or becomes readily ascertainable by proper means by the public without any breach of a confidentiality obligation of the receiving party;
- b. It is received from a third party that is not under an obligation of confidentiality of which the receiving party knew or had reason to know;
- c. It was independently developed by the receiving party without use of the Confidential Information; or
- d. It is required by law to be disclosed, provided that the receiving party provides to the disclosing party as much notice as is practicable under the circumstances of such requirement prior to disclosure and provides to the disclosing party, at the disclosing party's expense, such reasonable assistance as the disclosing party requests in seeking confidential treatment, protective orders, nondisclosure, and/or similar measures.

For the avoidance of doubt, none of the requirements of this Section shall prohibit the City from disclosing Confidential Information to the extent that such information is required to be disclosed pursuant to any open records law, open meetings law, or any other local public disclosure law applicable to the City.

33. FORCE MAJEURE

Neither the Contractor nor the City will be held liable for any delay or omission in performance of their duties under this Agreement resulting from causes beyond their reasonable control, including, for the sake of illustration and not limitation, delays or omissions attributable to third-party vendors, suppliers, or integration partners, labor strikes, acts of god, acts of the public enemy, fires, natural disasters, wars, or riots.

34. DISCLAIMER OF WARRANTIES

Passport warrants that the Software shall comply in all material respects with its specifications and perform in all material respects as intended. Other than as specifically set forth herein, Passport does not make any representations, warranties, or guarantees, express or implied, directly or indirectly, including, without limitation, any warranty of condition, merchantability, or fitness for a particular purpose or use, with respect to, arising out of, or in connection with the Software and related services to be performed pursuant to this Agreement.

35. LIMITATION OF LIABILITY

In no event will the Contractor be liable to the City for any lost profits, lost savings, or punitive, incidental, indirect, special, or consequential damages arising out of the City's use or inability to use the Software or the breach of this agreement, even if the Contractor has been advised of the possibility of such damages; provided, however, nothing contained in this Section 35 shall prevent the City from recovering damages directly caused by the Contractor's breach of this Agreement.

[SIGNATURE PAGE TO FOLLOW]

IN WITNESS WHEREOF, the effective date of this Agreement is the date of the signature last affixed to this Agreement.

CITY OF CHEYENNE:

CONTRACTOR:

By: _____
MARIAN J. ORR, MAYOR

By: _____

(S E A L)

Title: _____

Attest:

Company:

Printed Name:

CAROL INTLEKOFER, CITY CLERK

Date: _____

Date: _____



Exhibit A

Standard City Agreement for Services

Professional Services Agreement

George Cox Structure, Jack R. Spiker Structure & East Surface Lot

Item		Year 1	Year 2	Year 3
Mobile Payments for Parking¹	→ Private Label Android Application	Monthly Software License Fee \$1,875	Monthly Software License Fee \$1,875	Monthly Software License Fee \$1,875
	→ Private Label iOS Application			
Private Label App	→ Closed-Loop Wallet	Convenience Fee, Paid by theParker \$0.25	Convenience Fee, Paid by theParker \$0.25	Convenience Fee, Paid by theParker \$0.25
	→ Merchant Validation Program			
	→ Real-time Parking Availability			
Digital Permit Platform²	→ Custom Branding & Color Scheme	Monthly Software License Fee \$1,450	Monthly Software License Fee \$1,450	Monthly Software License Fee \$1,450
	→ Custom Permit Web Portal			
	→ Mobile-optimized Web Portal			
	→ Includes 1,200 Permits Issued per Year			
	→ Each Additional Permit Issued (1,201+): \$1 per permit issued	Additional Permits Issued \$1 per permit	Additional Permits Issued \$1 per permit	Additional Permits Issued \$1 per permit

¹ Mobile Payments for Parking Monthly Software License Fee & Convenience Fees billed upon launch of platform.

² Digital Permit Platform Monthly Software License Fee and Additional Permits Issued Fee (as applicable) billed upon launch of platform.

**PCS Mobile
License Plate
Recognition³**

- Mobile LPR & Professional Services
- Mobile Computing
- Fixed LPR & Free Flow Software - George Cox Structure
- Fixed LPR & Free Flow Software - Jack R. Spiker Structure

- Hosted Server (AutoVu Managed Services)
- Mobile Assurance Support (Annual Cost)

LPR Equipment & Services

\$252,335

LPR Service
\$23,900**LPR Service**
\$23,900

Cale Group⁴

- Equipment
- On-Going Services
- General Services

Pay Stations & Services

\$127,767.58

Pay Stations & Services

\$13,200

Pay Stations & Services\$13,200

³ PCS Mobile License Plate Recognition Equipment and Services fee of \$252,335 shall be billed to the City based on the following schedule: Hardware & Software fees of \$180,810 will be billed to the City when the LPR Equipment is received by PCS Mobile for configuration (approximately 4 weeks prior to launch.) Implementation Services Fee of \$58,425 shall be billed to the City when the hardware is implemented and accepted by the City. Annual Support Fees of \$13,100 shall be billed upon launch of the system. PCS Mobile License Plate Recognition LPR Service annual fee of \$23,900 shall be billed to City for year 2 and 3 of the Agreement. The pricing includes the following warranties: 1.) Genetec Standard Software and Hardware Warranty, pursuant to the terms and conditions set forth in Exhibit A-1, as services by PCS Mobile; 2.) PCS Mobile one (1) year warranty on workmanship; 3.) Panasonic five (5) year warranty as processed by PCS Mobile. The City may purchase extended warranties as provided by Genetec, PCS Mobile, or other third-party. The City acknowledges that Contractor provides no warranties on any equipment or services provided by any third-party.

⁴ Cale Group Pay Stations & Services fee of \$127,767.58 shall be billed upon installation of Pay Stations to City (timing prior to launch based on the City.) Pay Stations & Services annual fee of \$13,200 shall be billed to City for year 2 and 3 of the Agreement. The Pricing includes all applicable warranties provided by Cale Group for the applicable products and services purchased and Passport shall provide such warranty information to the City upon receipt from Cale Group.

Exhibit A- 1
Standard City Agreement for Services
Professional Services Agreement

Genetec™ Standard Software and Hardware
Warranty Overview

Version 9.1

2016-10-07

Innovative Solutions



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1 Overview

The following document describes the hardware warranty levels and Hardware Extended Warranties offered by Genetec Inc. (“Genetec”) for products developed, manufactured and sold by Genetec.

2 Standard Software Warranty Overview

2.1 Standard Software Warranty Coverage

Genetec warrants that its software products will perform in all material respects in accordance with the accompanying user manual, and the media on which the Software Product resides will be free from defects in materials and workmanship under normal use. Software defects are covered through Service Releases and Cumulative Updates which are available for a period of 1 year from the date of the software purchase. A copy of the “Software License Agreement and Genetec™ Advantage Agreement” is also available for review on the Genetec™ website. <http://www.genetec.com/Documents/EN/SLA/EN-Genetec-Software-License-Agreement-EULA.pdf>

2.2 Products Covered by Standard Software Warranty

All packaged software products developed by Genetec, including but not limited to Security Center, Security Center Mobile, Omnicast™, Synergis™, Plan Manager, Sipelia™ and AutoVu™ Patroller.

Purchased upgrades are covered through the Standard Warranty.

All custom software applications developed by Genetec using one of the Genetec™ Software Development Kits (SDK) for 90 days.

3 Standard Hardware Warranty Overview

3.1 Standard Hardware Warranty

3.1.1 Coverage

Genetec warrants each product it manufactures to be free from defects in materials and assembly in the course of normal use and service, and provides technical assistance related to these defects.

The Genetec™ Hardware Warranties cover both the product Hardware and Software running on the product, with the exception of appliances running one of Genetec's software products (ex: SV-16, SV-32, SV-PRO) in which case the Software Warranty takes precedence over the hardware warranty for software related issues.

The Genetec™ Standard Hardware Warranty does not cover labor to send a Genetec™ engineer on-site to evaluate a system problem and/or determine if there is a warranty issue or not and/or replace a defective product.

3.1.2 Products Covered

All hardware products manufactured or resold by Genetec, including but not limited to, AutoVu™ Sharp, AutoVu™ SharpX, Access Control Hardware, SMC, Synergis™ Cloud Link, SV-16, SV-32, SV-PRO and respective accessories are covered by the Standard Warranty or falls under the manufacturer warranty.

3.1.3 Summary

In Warranty Repairs	
Product Return and Repair	Included ^{1,2,3}
Advanced Replacement of Defective Product	Included within 90 days of purchase (12 months on some Access Control hardware) ^{4,6}
Unit Repair Turnaround time	10 business days between receipt by Genetec and ship date to customer ⁶
Functional Product Return	Service charge for returned product with no defect found ⁶
Product DOA (within 90 days of shipment)	Free advanced replacement of a new product. ⁶
Product Software Updates/Upgrades	
Product Software & Firmware Updates/Upgrades	Included ⁵
Warranty Period	
Length of Warranty	According to product ⁴
Warranty Start Date	On the day the product is delivered

¹: Additional charges may be applied if damage is a result of using the product in a way that it is not typically intended to be used.

²: Product may be replaced by a fully functional refurbished product.

³: Customer is responsible for all shipping charges to return the product back to Genetec, and Genetec will cover the shipping charges to send the product back to the customer.

⁴: Product standard warranty lengths and maximum extended warranty lengths can be found in Appendix A.

⁵: Services to perform the upgrade are not included. Support will only upgrade free of charge, if an upgrade is deemed necessary to resolve an issue or bug. Please refer to Appendix A

⁶: Genetec™ SV-PRO, SV16v3, SV32v2, and BCDVideo are covered by onsite support parts and labor from their respective original manufacturer. Apart from SV16v3 and SV32v2 hard drive/encoder cards, no advanced replacement or returns are offered for these products. Product DOA follows the same procedure as onsite repair. Please refer to Appendix A for warranty duration and terms for the concerned products.

4 Genetec™ Extended Hardware Warranty Overview

4.1 Genetec™ Extended Hardware Warranty

An Extended Warranty provides the means to extend the standard warranty length of hardware products sold by Genetec and that are eligible for a warranty extension. (See *Appendix A – Hardware Warranty Lengths*)

4.1.1 Summary

In Warranty Repairs		
	Return and Repair	Advanced Replacement
Product Return and Repair	Included ^{1,2,3}	Not applicable
Advanced Replacement of Defective Product	Included within 90 days of product purchase	Included ^{1,2,3}
Unit Repair Turnaround time	10 business days between receipt by Genetec and ship date to customer	Customer responsible for replacing and returning the defective product to Genetec ³ within 30 days, otherwise MSRP of product will be invoiced to customer
Functional Product Return	Service charge for returned product with no defect found	Service charge for returned product with no defect found
Product Software Updates/Upgrades		
Product Software & Firmware Updates/Upgrades	Included ⁵	Included ⁵
Warranty Period		
Length of Extended Warranty	According to product ⁴	According to Product ⁴
Warranty Start Date	On the day the product is delivered	On the day the product is delivered

¹: Additional charges may be applied if damage is a result of using the product in a way that it is not typically intended to be used.

²: Product may be replaced by a fully functional refurbished product.

³: Customer is responsible for all shipping charges to return the product back to Genetec, and Genetec will cover the shipping charges to send the product back to the customer.

⁴: Product standard warranty lengths and maximum extended warranty lengths can be found in Appendix A.

⁵: Services to perform the upgrade are not included.

5 Genetec™ Hardware Warranty Terms and Conditions

The Genetec™ Standard and/or Extended Hardware Warranty are governed by the below terms and conditions relating to repairs, replacements, remedies, or exclusions to the warranty.

5.1.1 Warranty on repairs and replacement parts

All Genetec™ products serviced by Genetec for repairs and replacements parts are warranted against defects in workmanship and materials for a period of 90 days, or the remainder of the original warranty, whichever is the longest.

5.1.2 Exclusive Warranty Remedy

During the applicable warranty period and in the event that a product is determined by Genetec to be defective in materials or assembly, Genetec will at its sole discretion either credit the customer the price paid for the defective product, or repair the defective product without charge, or replace the defective product with a new or refurbished product, or replace the defective product with a different product with identical or better specifications.

5.1.3 Warranty Exclusions

The following items are not covered by the Genetec™ Standard Hardware Warranty:

- Any equipment received by Genetec which does not match the Serial # captured during RMA process with GTAC.
- Any equipment not furnished by Genetec.
- A product which is used with non-supported ancillary equipment or software.
- Freight cost to return a product to Genetec.
- Defects or damage resulting from customer's improper testing, operation, installation, maintenance, modification, alteration, or adjustment.
- Defects or damage from misuse, accident or neglect.
- Defects or damage resulting from use of the product in other than its normal and customary manner.
- Defects or damage resulting from drilling holes, adding decals or other adhesives, or by painting the product.
- Defects or damage due to lightning or other electrical discharge.
- Product that is disassembled or repaired in such a manner as to adversely affect performance or prevent adequate inspection and testing to verify any warranty claim.
- Modification or abuse of, or tampering with, the product.
- Normal wear and tear.

5.1.4 Relocation of AutoVu™ Mobile Systems

Relocating a hard mounted AutoVu™ Mobile System from one vehicle to another will void the warranty on the cables. This does not apply to portable systems with magnetic mounts.

6 Appendix A – Hardware Warranty Lengths

Product Family	Standard Warranty Length		Advance Replacement	Maximum Extended Warranty Length (in addition to standard warranty)
	Hardware	Software		
AutoVu™ Sharp	1 year	SharpOS follows hardware warranty	Included within 90 days of product purchase	4 years
AutoVu™ Processing Unit and SharpX	1 year	SharpOS follows hardware warranty	Included within 90 days of product purchase	4 years
AutoVu™ Navigator Box	1 year	n/a	Included within 90 days of product purchase	4 years
AutoVu™ Break out Box	1 year	n/a	Included within 90 days of product purchase	4 years
SV-16v2	3 years	3 years	Included for the Duration of the warranty	Not applicable
SV-16v3	3 years	3 years	SV16v3 is covered by onsite support next business day parts and labor by HP. The hardware warranty covers the unit itself excluding the hard disk which is covered by advanced replacement from BCDVideo for the duration of the warranty	Not applicable
SV-32	3 years	3 years	Included for the Duration of the warranty	Not applicable
SV-32v2	3 years	3 years	SV32v2 is covered by onsite support next business day parts and labor by HP. The hardware warranty covers the unit itself excluding the hard disk and the encoder cards which is covered by advanced replacement from BCDVideo for the duration of the warranty	Not applicable
SV-PRO(v3 and earlier)	3 years	3 years	SV-PRO is under Dell's Pro-Support warranty (Next Business Day parts and labor)	Not applicable
SV-PROv4	3 years	3 years	SV-PRO is under HP WorldWide warranty (Next Business Day, On-Site for parts and labor) The hardware warranty covers the unit itself excluding the hard disk which is covered by advanced replacement from BCDVideo for the duration of the warranty	Not applicable
BCDVideo	5 years	Not applicable	BCDVideo products are under HP warranty (Next Business Day parts and labor)	Not applicable
HID VertX	2 years	Not applicable	12 months	Not applicable
HID Edge	2 years	Not applicable	12 months	Not applicable
Mercury EP and SIO panels	2 years	Not applicable	12 months	Not applicable
SMC	2 years	Not applicable	12 months	Not applicable
Synergis™ Cloud Link	2 years	Not applicable	12 months	Not applicable
Panasonic CF-19 Laptops	5 years ¹	Refer to Patroller ADV	Not applicable	Not applicable
USB GPS	1 year	Not applicable	Not applicable	Not applicable

Gamber Johnson Docking Station (For CF-19)	Manufacturer policy applies ²	Not applicable	Manufacturer policy applies ²	Not applicable
Access Control Power supplies	Manufacturer policy applies ³	Not applicable	Manufacturer policy applies ³	Not applicable
AutoVu™ Sharp/SharpX Power supplies	1 year ⁴	Not applicable	Not applicable	Not applicable
Assembled kits (Access control)	Warranty on individual components, NOT the topline kit	Not applicable	Warranty on individual components	Not applicable
HID Cards, readers, printers	Manufacturer policy applies ⁵	Not applicable	Manufacturer policy applies ⁵	Not applicable
RFIDEAS desktop reader	Manufacturer policy applies ⁶	Not applicable	Manufacturer policy applies ⁶	Not applicable

1: <http://www.panasonic.com/business/toughbook/computer-support-warranty-information.asp> 2: http://www.gamberjohnson.com/sites/default/files/7160-0264-04_0.pdf

3: http://www.lifesafetypower.com/docs/lsp_tac.pdf

4: <http://www.deltapsu.com/>

5: <http://www.hidglobal.com/warranty-policy>

6: <https://www.rfideas.com/support/warranty-information>

